



CHAPTER 22

An Act to amend the provisions of the White Fish and Herring Industries Act, 1953, relating to grants by the White Fish Authority and the Herring Industry Board towards new vessels and engines and to the white fish subsidy ; to provide a subsidy in respect of herring ; and for purposes connected with the matters aforesaid.

[17th April, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subsection (1) of section one of the White Fish and Herring Industries Act, 1953 (hereinafter referred to as “the principal Act”) and subsection (1) of section six of that Act (which respectively empower the White Fish Authority to make grants to persons engaged or proposing to become engaged in the white fish industry grants in respect of expenditure incurred in the acquisition of new fishing vessels not exceeding one hundred and forty feet in length or the acquisition of new engines for fishing vessels not exceeding one hundred and forty feet in length and the Herring Industry Board to make to persons engaged or proposing to become engaged in the herring industry grants in respect of the like expenditure) shall each have effect as if the reference to expenditure incurred as aforesaid included a reference to expenditure incurred in the conversion, from coal-firing to oil-firing, of the engine-boilers of any fishing vessel not exceeding one hundred and forty feet in length, where the contract for the execution of the work of conversion is shown to the satisfaction of the authority empowered to make the grants to have been made after the appointed day.

Extension of scope of grants under ss. 1 and 6 of 1 & 2 Eliz. 2. c. 17.

(2) No grant shall be made in pursuance of a scheme under section one or six of the principal Act in respect of expenditure incurred in the acquisition of a vessel unless an application for the grant is approved by the Authority or the Board, as the case may be, before the expiration of the period of ten years beginning with the date of the passing of that Act ; no grant in respect of expenditure incurred in the acquisition of an engine for a vessel shall be so made otherwise than to an individual who satisfies the Authority or the Board, as the case may be, that he is or is to be a working owner of the vessel unless—

- (a) an application for the grant is approved by the Authority or the Board in accordance with the scheme before the end of March, nineteen hundred and sixty-one ; and
- (b) the operation of the engine does not involve the consumption of coal and the engine is installed in place of one whose operation did involve the consumption of coal ;

no grant in respect of expenditure incurred in the acquisition of an engine for a vessel shall be made in pursuance of such a scheme to such an individual as aforesaid unless an application for the grant is approved by the Authority or the Board, as the case may be, in accordance with the scheme before the expiration of the said period of ten years ; and no grant in respect of expenditure incurred in the conversion, from coal-firing to oil-firing, of the engine-boilers of a vessel shall be made in pursuance of such a scheme unless an application for the grant is approved by the Authority or the Board, as the case may be, in accordance with the scheme before the end of March, nineteen hundred and sixty-one.

(3) The amount of a grant which may be made in pursuance of a scheme under section one or six of the principal Act in respect of expenditure incurred in the acquisition of a vessel or in the acquisition of an engine for a vessel shall not exceed the following amount, that is to say :—

- (a) where the grant is made to an individual who satisfies the Authority or the Board, as the case may be, that he is or is to be a working owner of the vessel, three tenths of the said expenditure ;
- (b) in any other case, one quarter of the said expenditure ;

and the amount of a grant which may be so made in respect of expenditure incurred in the conversion, from coal-firing to oil-firing, of the engine-boilers of a vessel shall not exceed one quarter of the said expenditure.

(4) Any reference in the principal Act or this section to expenditure incurred in the acquisition of a new engine for a vessel shall, where—

- (a) the engine is installed in place of one which furnished motive power to other machinery of the vessel but is itself not designed to furnish motive power to that other machinery ; and
- (b) the Authority or the Board, as the case may be, are satisfied that the contract for the supply of the engine was made after the appointed day ;

be construed as including a reference to expenditure incurred in carrying out such work for the provision of motive power to that other machinery as is necessitated by the change of engine.

(5) Subsections (2) and (3) of this section shall have effect in lieu of so much of subsection (2) of section one and of subsection (2) of section six of the principal Act as precludes the payment of grants except in pursuance of applications approved by the Authority or the Board before the expiration of the period therein specified, and of subsections (1) and (2) of section two of that Act (which specify the maximum amounts of grants which may be made in pursuance of a scheme under section one or six of that Act and, in the case of grants in respect of expenditure incurred in the acquisition of engines for vessels, limit the payment thereof to working owners); but no grant shall be made in pursuance of a scheme under section one or six of the principal Act in respect of expenditure incurred in the acquisition of a new engine for a vessel by a person other than an individual who satisfies the Authority or the Board, as the case may be, that he is or is to be a working owner of the vessel, unless the Authority or the Board, as the case may be, are satisfied that the contract for the supply of the engine was made after the appointed day.

(6) In this section, except where the context otherwise requires, " Authority " means the White Fish Authority, " Board " means the Herring Industry Board, " working owner ", in relation to a vessel, means a person who, being the owner or one of the owners of the vessel, regularly goes to sea in it when it is used for the purpose of fishing and " the appointed day " means such day (whether before or after the passing of this Act but not earlier than the twenty-eighth day of February, nineteen hundred and fifty-seven) as the Ministers may by order appoint.

2. For subsections (2) and (3) of section five of the principal Act (which relate to the scope of the white fish subsidy), there shall be substituted the following subsections :—

Extension
of white fish
subsidy.

" (2) Subject to the provisions of this section, a scheme made thereunder may provide for the payment of grants

in the case of any vessel in respect of white fish landed from the vessel in the United Kingdom, voyages made by the vessel for the purpose of catching such fish and landing them in the United Kingdom or any such other matter as may be specified in the scheme or in respect of a combination of all or any of the things which by virtue of the foregoing provisions of this subsection may be severally specified ; but no such grant shall be made—

(a) in respect of a voyage beyond the inshore, near and middle waters as defined by this section ; or

(b) in respect of fish taken (whether within those waters or not) in the course of such a voyage.

(3) No grant shall be made in pursuance of a scheme under this section unless an application therefor is received by the appropriate Minister before the first day of May, nineteen hundred and sixty-one, or, if it is so prescribed by an order made by the Ministers, the first day of May, nineteen hundred and sixty-three ”.

Herring
subsidy.

3.—(1) With a view to promoting the landing in the United Kingdom of a continuous and plentiful supply of herring, the appropriate Minister may, in accordance with a scheme made by the Ministers with the approval of the Treasury, make grants to the owners or charterers of fishing vessels engaged in catching herring (being vessels not exceeding one hundred and forty feet in length and registered in the United Kingdom) of such amounts, and subject to such conditions, as may be determined by or under the scheme.

(2) Subject to the provisions of this section, a scheme made thereunder may provide for the payment of grants in the case of any vessel in respect of herring landed from the vessel in the United Kingdom, voyages made by the vessel for the purpose of catching herring and landing them in the United Kingdom or any such other matter as may be specified in the scheme or in respect of a combination of all or any of the things which by virtue of the foregoing provisions of this subsection may be severally specified ; but no such grant shall be made—

(a) in respect of a voyage beyond the inshore, near and middle waters as defined by subsection (5) of section five of the principal Act ; or

(b) in respect of herring taken (whether within those waters or not) in the course of such a voyage.

(3) No grant shall be made in pursuance of a scheme under this section unless an application therefor is received by the appropriate Minister before the first day of May, nineteen hundred and sixty-one, or, if it is so prescribed by an order made by the Ministers, the first day of May, nineteen hundred and sixty-three.

(4) In this section "the appropriate Minister" means, in relation to Scotland, the Secretary of State concerned with the sea fishing industry in Scotland, and in relation to the remainder of the United Kingdom, the Minister of Agriculture, Fisheries and Food.

(5) Any expenses incurred by the appropriate Minister in the making of grants under this section shall be defrayed out of the moneys provided by Parliament.

4. The aggregate amount of the grants made in pursuance of schemes under section five of the principal Act and of schemes under the last foregoing section shall not exceed seventeen million pounds or such greater sum (not exceeding nineteen million pounds) as may be prescribed by an order made by the Ministers with the approval of the Treasury.

Maximum amount of grants by way of white fish and herring subsidies.

5.—(1) Subject to the provisions of this section, any power to make a scheme under the principal Act or this Act shall include power to vary or revoke that scheme by a subsequent scheme.

General provisions relating to schemes and orders under the principal Act and this Act.

(2) A scheme under the principal Act or this Act shall not be so varied or revoked as to affect the payment of grant in pursuance of an application approved under the scheme before the coming into operation of the subsequent scheme.

(3) Any power of the Ministers to make a scheme or order under the principal Act or this Act shall be exercisable by statutory instrument.

(4) A scheme under the principal Act or this Act, and an order under subsection (3) of section five of the principal Act (as amended by this Act) or under subsection (3) of section three of this Act, shall be of no effect until it is approved by a resolution of each House of Parliament, and an order under the last foregoing section shall be of no effect until it is approved by a resolution of the Commons House of Parliament.

6.—(1) In this Act "the Ministers" means the Minister of Agriculture, Fisheries and Food and the Secretary of State concerned with the sea fishing industry in Scotland.

Interpretation.

(2) Subsections (2) and (3) of section thirteen of the principal Act (which respectively relate to the calculation, for the purposes of that Act, of the lengths of vessels and to the construction of references therein to expenditure incurred in the acquisition of a vessel and expenditure incurred in the acquisition of an engine for a vessel) shall have effect as if the references therein to that Act included references to this Act.

7.—(1) This Act may be cited as the White Fish and Herring Industries Act, 1957.

Short title, citation and repeal.

(2) The White Fish Industry Acts, 1951 and 1953, section one of this Act so far as it relates to section one of the principal Act, section five of this Act so far as it applies to section one of the principal Act, and section six of this Act so far as it applies to section one thereof, may be cited together as the White Fish Industry Acts, 1951 to 1957.

3 & 4 Eliz. 2. c. 7. (3) The Herring Industry Acts, 1935 to 1953, section one of the Fisheries Act, 1955, section one of this Act so far as it relates to section six of the principal Act, section five of this Act so far as it applies to section six of the principal Act and section six of this Act so far as it applies to section one thereof, may be cited together as the Herring Industry Acts, 1935 to 1957.

(4) The provisions of the principal Act specified in the first column of the Schedule to this Act are hereby repealed to the extent specified in the second column of that Schedule.

SCHEDULE

Section 7.

PROVISIONS OF PRINCIPAL ACT REPEALED

<i>Provision</i>	<i>Extent of Repeal</i>
Section one ...	In subsection (2), the words from " and no grant " to the end of the subsection.
Section two ...	Subsections (1), (2) and (5).
Section five ...	Subsection (4).
Section six ...	In subsection (2), the words from " and no grant " to the end of the subsection.
Section eleven ...	The whole section.
Section sixteen ...	In subsections (2) and (3), the words "section eleven and".

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 8d. net

PRINTED IN GREAT BRITAIN

(38485)